

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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MAHAMADOU SIDIBEH, MUHAMMED GUMANEH,
AND USMAN HARUNA,

SUMMONS

Plaintiffs,

Index No.
Purchased:

-against-

Plaintiff selects Bronx County as the
place of trial

CITY OF NEW YORK, KEVIN RAMIREZ, JOSE
MERCEDES, JORGE FLORES, SCOTT SMITH, DANIEL
BACA, WILFREDO BENITEZ, AND JOHN OR JANE
DOE I-10,

The basis of venue is where the injury
occurred

Defendants.
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TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
March 8, 2022


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By: ATAUR RAQUIB, ESQ.
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TO: CORPORATION COUNSEL OF THE CITY OF NEW YORK

100 Church Street
New York, New York 10007

KEVIN RAMIREZ

Tax Id No. 959915, Shield No. 21323
Via NYPD 44th Precinct
2 E 169th Street
Bronx, New York 10452

JOSE MERCEDES

Tax Id No. 961948, Shield No. 1721
Via NYPD 44th Precinct
2 E 169th Street
Bronx, New York 10452

JORGE FLORES

Tax Id No. 954816, Shield No. 7680
Via NYPD 44th Precinct
2 E 169th Street
Bronx, New York 10452

SCOTT SMITH

Tax Id No. 959995, Shield No. 10427
Via NYPD 44th Precinct
2 E 169th Street
Bronx, New York 10452

DANIEL BACA

Tax Id No. 934434, Shield No. 2975
Via NYPD 52nd Precinct
3016 Webster Ave
Bronx, New York 10467

WILFREDO BENITEZ

Tax Id No. 947459, Shield No. 5619
Via NYPD 44th Precinct
2 E 169th Street
Bronx, New York 10452

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
MAHAMADOU SIDIBEH, MUHAMMED GUMANEH,
AND USMAN HARUNA,

Plaintiffs,

VERIFIED COMPLAINT

-against-

Index No.

CITY OF NEW YORK, KEVIN RAMIREZ, JOSE
MERCEDES, JORGE FLORES, SCOTT SMITH, DANIEL
BACA, WILFREDO BENITEZ, AND JOHN OR JANE
DOE I-10,

Defendants.

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Plaintiffs, **MAHAMADOU SIDIBEH, MUHAMMED GUMANEH, and USMAN HARUNA**, by and through their undersigned attorneys, **SIM & DEPAOLA, LLP**, for their complaint against the Defendants, **CITY OF NEW YORK, KEVIN RAMIREZ, JOSE MERCEDES, JORGE FLORES, SCOTT SMITH, DANIEL BACA, WILFREDO BENITEZ**, and **JOHN OR JANE DOE 1-10**, alleges and states as follows:

1. This is a civil rights action, in which plaintiff seeks relief, vis-à-vis 42 U.S.C. §§ 1981, 1983, 1985, 1986 and 1988, the laws of the State of New York, in addition to the self-executing clauses or implied private causes of action within the New York State Constitution, for the violations of his civil rights, as guaranteed and protected by the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States, as well as the Laws and Constitution of the State of New York.

2. The following claims arise from a June 5, 2020 incident, in which defendants, acting under color of state law, unlawfully stopped, battered and assaulted, searched, detained, and arrested Plaintiffs in the vicinity of Marcy Place between Grand Concourse and Sheridan Ave, within the

County of Bronx, City and State of New York. Plaintiffs were subsequently removed to 44th Precinct and then later released with criminal court summonses. As a result, Plaintiffs were deprived of their liberty and suffered various physical, emotional and psychological injuries. Plaintiffs were wrongfully detained over the course of two (2) days. Plaintiffs were maliciously prosecuted and denied due process of law, until all adverse charges were dismissed as legally insufficient.

3. At all times here mentioned, Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

4. Plaintiffs have served a notice of claim upon the City of New York in compliance with Section fifty-e of the New York General Municipal Law (GML § 50-e).

5. At least thirty (30) days have elapsed since the service of said notice, and adjustment or payment thereof has been neglected or refused.

6. Plaintiffs have complied with the municipal defendant's demand for an examination, pursuant to GML § 50-h, or said demand was untimely made.

7. This action and associated claims have been timely commenced within one-year-and-ninety-days after the occurrences upon which they are based and upon availing Executive Order 202.8 *et seq.* issued by former Governor Andrew Cuomo in response ongoing COVID-19 pandemic that tolled the statute of limitations for the period from March 20, 2020 to November 4, 2020.

8. Plaintiffs seek monetary damages (compensatory and punitive) against defendants, an award of costs and reasonable attorneys' fees, and such other and further relief as this Court may deem just and proper.

PARTIES

9. Plaintiff, Mr. Mahamadou Sidibeh (“Mr. Sidibeh”), is an African American or Black male, who presently resides in Bronx, New York.

10. Plaintiff, Mr. Muhammed Gumaneh (“Mr. Gumaneh”), is an African American or Black male, who presently resides in Bronx, New York.

11. Plaintiff, Mr. Usman Haruna (“Mr. Haruna”) is an African American or Black male, who presently resides in Manhattan, New York.

12. Defendant, City of New York (“City”), is a municipal corporation organized under the laws of the State of New York.

13. At all times relevant hereto, defendant City, acting through the New York City Police Department (“NYPD”), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, screening, hiring, training, supervision, discipline, retention and conduct of all NYPD personnel, including police officers, detectives, investigators, sergeants, lieutenants and other supervisory officers or officials, as well as the individually named NYPD defendants herein.

14. At all times here relevant herein, Defendant City, was responsible for enforcing the rules or regulations of the NYPD, and for ensuring that the NYPD personnel obey the laws and constitutions of the United States and the State of New York.

15. At all relevant times herein, Defendant KEVIN RAMIREZ (“RAMIREZ”) was a police officer, detective, sergeant, supervisor, or policymaker employed by the NYPD, under Tax Id No.

959915 and Shield No. 21323. Defendant RAMIREZ is currently assigned to the 44th Precinct.

Defendant RAMIREZ is being sued in his official and individual capacities.

16. At all relevant times herein, Defendant JOSE MERCEDES (“MERCEDES”) was a police officer, detective, sergeant, supervisor, or policymaker employed by the NYPD, under Tax Id No. 961948 and Shield No. 1721. Defendant MERCEDES is currently assigned to the 44th Precinct.

Defendant MERCEDES is being sued in his official and individual capacities.

17. At all relevant times herein, Defendant JORGE FLORES (“FLORES”) was a police officer, detective, sergeant, supervisor, or policymaker employed by the NYPD, under Tax Id No. 954816 and Shield No. 7680. Defendant FLORES is currently assigned to the 44th Precinct.

Defendant FLORES is being sued in his official and individual capacities.

18. At all relevant times herein, Defendant SCOTT SMITH (“SMITH”) was a police officer, detective, sergeant, supervisor, or policymaker employed by the NYPD, under Tax Id No. 959995 and Shield No. 10427. Defendant SMITH is currently assigned to the 44th Precinct. Defendant SMITH is being sued in his official and individual capacities.

19. At all relevant times herein, Defendant DANIEL BACA (“BACA”) was a police officer, detective, sergeant, supervisor, or policymaker employed by the NYPD, under Tax Id No. 934434 and Shield No. 2975. Defendant BACA is currently assigned to the 52nd Precinct. Defendant BACA is being sued in his official and individual capacities.

20. At all relevant times herein, Defendant WILFREDO BENITEZ (“BENITEZ”) was a police officer, detective, sergeant, supervisor, or policymaker employed by the NYPD, under Tax Id No. 947459 and Shield No. 5619. Defendant BENITEZ is currently assigned to the 44th Precinct. Defendant BENITEZ is being sued in his official and individual capacities.

21. At all relevant times, defendants JOHN OR JANE DOE 1-10 were police officers, detectives, sergeants, supervisors, policymakers or officials employed by the NYPD or City of New York. At this time, Plaintiff does not know the true names or tax registry numbers of defendants, JOHN OR JANE DOE 1-10, as such knowledge is within the exclusive possession of defendants.

22. At all relevant times herein, defendants, including RAMIREZ, MERCEDES, FLORES, SMITH, BACA, BENITEZ, and JOHN OR JANE DOE 1-10 were acting as agents, servants and employees of the City of New York, or the NYPD. Defendants, including RAMIREZ, MERCEDES, FLORES, SMITH, BACA, BENITEZ, and JOHN OR JANE DOE 1-10, are being sued in their individual and official capacities.

23. At all relevant times herein, defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City or State of New York.

FACTUAL CHARGES

24. On June 5, 2020, at approximately 10:00 p.m., in the vicinity of Marcy Place between Grand Concourse and Sheridan Ave, within the County of Bronx, City and State of New York, Plaintiffs were illegally stopped, seized and searched, battered and assaulted, detained, and arrested, by defendants, including RAMIREZ, MERCEDES, FLORES, SMITH, BACA, BENITEZ, and JOHN OR JANE DOE 1-10.

25. On said date and time, Defendants, including RAMIREZ, MERCEDES, FLORES, SMITH, BACA, BENITEZ, and JOHN OR JANE DOE 1-10, approached and illegally stopped Plaintiffs, without probable cause, reasonable suspicion, or any justification whatsoever as to the commission of unlawful conduct.

26. On said date and time, Plaintiff, Mr. Sidibeh, was lawfully present on the sidewalk in the vicinity of this complained-of-location and pulled out his phone to lawfully record the conduct of Defendants, including RAMIREZ, MERCEDES, FLORES, SMITH, BACA, BENITEZ, and JOHN OR JANE DOE 1-10, and in response, said Defendants illegally seized and forcefully took Mr. Sidibeh's phone from his possession without his consent or asking for his consent.

27. Defendants, including RAMIREZ, MERCEDES, FLORES, SMITH, BACA, BENITEZ, and JOHN OR JANE DOE 1-10, then illegally stopped and seized Plaintiff, Mr. Sidibeh, without probable cause, reasonable suspicion, or any justification whatsoever as to the commission of unlawful conduct.

28. Defendants, including RAMIREZ, MERCEDES, FLORES, SMITH, BACA, BENITEZ, and JOHN OR JANE DOE 1-10, without any investigation into criminal activity, then accused Plaintiff, Mr. Sidibeh, of a criminal offense and proceeded to violently contort his arms behind his back so that they could apply metal handcuffs disregarding Plaintiff's complaints that the cuffs were placed on too tightly causing him significant discomfort and pain.

29. Defendants, including RAMIREZ, MERCEDES, FLORES, SMITH, BACA, BENITEZ, and JOHN OR JANE DOE 1-10, ignored all of Mr. Sidibeh's pleas to loosen the handcuffs, which resulted in Plaintiff's wrists and hands sustaining loss of feeling, redness, and swelling.

30. On said date and time, Plaintiff, Mr. Gumaneh, was lawfully present on the sidewalk in the vicinity of this complained-of-incident and waiting for an Uber driver to pick him up and take him home.

31. Defendants, including RAMIREZ, MERCEDES, FLORES, SMITH, BACA, BENITEZ, and JOHN OR JANE DOE 1-10, then approached Plaintiff, Mr. Gumaneh, and illegally stopped and seized him by forcefully grabbing him about his person with their outstretched hands and

pressing him into a nearby wall and slamming his forehead into said wall without probable cause, reasonable suspicion, or any justification whatsoever as to unlawful conduct, causing Plaintiff to experience substantial pain, bruising to his forehead, shock, and significant emotional distress.

32. Defendants, including RAMIREZ, MERCEDES, FLORES, SMITH, BACA, BENITEZ, and JOHN OR JANE DOE 1-10, without any investigation into criminal activity, then accused Plaintiff, Mr. Gumaneh, of a criminal offense and proceeded to violently contort his arms behind his back so that they could apply metal handcuffs disregarding Plaintiff's complaints that the cuffs were placed on too tightly causing him significant discomfort and pain.

33. Defendants, including RAMIREZ, MERCEDES, FLORES, SMITH, BACA, BENITEZ, and JOHN OR JANE DOE 1-10, ignored all of Mr. Gumaneh's pleas to loosen the handcuffs, which resulted in Plaintiff's wrists and hands sustaining loss of feeling, redness, and swelling.

34. On said date and time, Plaintiff, Mr. Haruna, was lawfully present on the sidewalk in the vicinity of this complained-of incident.

35. Defendants, including RAMIREZ, MERCEDES, FLORES, SMITH, BACA, BENITEZ, and JOHN OR JANE DOE 1-10, then illegally approached, stopped and questioned Plaintiff, Mr. Haruna, without probable cause, reasonable suspicion, or any justification whatsoever as to the commission of unlawful conduct.

36. Plaintiff, Mr. Haruna, then communicated to Defendants, including RAMIREZ, MERCEDES, FLORES, SMITH, BACA, BENITEZ, and JOHN OR JANE DOE 1-10, that he was headed home.

37. Defendants, including RAMIREZ, MERCEDES, FLORES, SMITH, BACA, BENITEZ, and JOHN OR JANE DOE 1-10, without any investigation into criminal activity, then accused Plaintiff, Mr. Haruna, of a criminal offense, illegally seized his person, and proceeded to violently

contort his arms behind his back so that they could apply metal handcuffs disregarding Plaintiff's complaints that the cuffs were placed on too tightly causing him significant discomfort and pain.

38. Defendants, including RAMIREZ, MERCEDES, FLORES, SMITH, BACA, BENITEZ, and JOHN OR JANE DOE 1-10, ignored all of Mr. Haruna's pleas to loosen the handcuffs, which resulted in Plaintiff's wrists and hands sustaining loss of feeling, redness, and swelling.

39. Defendants, including RAMIREZ, MERCEDES, FLORES, SMITH, BACA, BENITEZ, and JOHN OR JANE DOE 1-10, then illegally detained and searched Plaintiffs, including Mr. Sidibeh, Mr. Gumaneh, and Mr. Haruna, in plain view of bystanders, without probable cause, reasonable suspicion, or any justification whatsoever as to the commission of unlawful conduct.

40. Defendants, including RAMIREZ, MERCEDES, FLORES, SMITH, BACA, BENITEZ, and JOHN OR JANE DOE 1-10, then placed Plaintiffs in a police vehicle and transported them against their will to the 44th Precinct.

41. Defendants, including RAMIREZ, MERCEDES, FLORES, SMITH, BACA, BENITEZ, and JOHN OR JANE DOE 1-10, then fingerprinted, photographed, and searched or strip-searched Plaintiffs with attendant cavity inspections before placing them in a dank and dirty cell where Plaintiffs were illegally detained over the course of two (2) days before their release from physical custody with criminal court summonses, on or about June 6, 2020.

42. During Plaintiffs' illegal detainment at the 44th Precinct, Defendants, including RAMIREZ, MERCEDES, FLORES, SMITH, BACA, BENITEZ, and JOHN OR JANE DOE 1-10, interrogated and questioned Plaintiffs, without presence of their counsel or the reading of their Miranda rights, about firearms, gang activity, and other topics completely unrelated to Plaintiffs and their illegal detainment.

43. Defendants, including RAMIREZ, MERCEDES, FLORES, SMITH, BACA, BENITEZ, and JOHN OR JANE DOE 1-10, signed the criminal complaint against Plaintiffs, in which he knowingly affirmed the truth of the fabricated allegations against plaintiffs.

44. Defendants, including RAMIREZ, MERCEDES, FLORES, SMITH, BACA, BENITEZ, and JOHN OR JANE DOE 1-10, lacked any probable cause or reasonable suspicion to arrest Plaintiffs, because Defendants never observed Plaintiffs commit any crime or violation of the law.

45. Due to the lack of probable cause for the seizure of Plaintiffs' persons, the aforementioned conduct constituted the completed torts of Assault and Battery by Defendants, including RAMIREZ, MERCEDES, FLORES, SMITH, BACA, BENITEZ, and JOHN OR JANE DOE 1-10.

46. Defendants, including RAMIREZ, MERCEDES, FLORES, SMITH, BACA, BENITEZ, and JOHN OR JANE DOE 1-10, knowingly, maliciously, and intentionally engaged in the fabrication of false and fictitious evidence, observations, events and occurrences, which Defendants falsely attributed to Plaintiffs before forwarding to prosecutors.

47. Defendants, including RAMIREZ, MERCEDES, FLORES, SMITH, BACA, BENITEZ, and JOHN OR JANE DOE 1-10, engaged in fraud, the suppression of evidence, perjury, and a gross deviation from acceptable police conduct and other conduct undertaken in bad faith.

48. Plaintiff asserts that Defendants, including RAMIREZ, MERCEDES, FLORES, SMITH, BACA, BENITEZ, and JOHN OR JANE DOE 1-10, falsely arrested, wrongfully detained, and maliciously prosecuted Plaintiffs with the full knowledge that he had committed no crimes or violations of the law.

49. Plaintiffs, therefore, assert that due to the clear absence of any viable probable cause to warrant their criminal prosecution, at any point, they were denied their rights to a fair trial and due

process and were maliciously prosecuted from the moment of their arraignment, until the criminal proceeding was irrefutably terminated in favor of Plaintiffs, including Mr. Sidibeh, Mr. Gumaneh, and Mr. Haruna, when all adverse charges under Bronx County Criminal Court Docket Nos. 2020SX014552, 2020SX014499, and 2020SX014367, respectively, were outright dismissed and sealed on the merits on or about September 9, 2020, pursuant to section 160.50 of the New York Criminal Procedure Law.

50. As a result, Plaintiffs were caused to be unlawfully, involuntarily, and continuously detained by Defendants, including RAMIREZ, MERCEDES, FLORES, SMITH, BACA, BENITEZ, and JOHN OR JANE DOE 1-10, over the course of two (2) days, until their release from physical custody on or about June 6, 2020, and additionally, Plaintiff, Mr. Sidibeh, never received his phone back from said defendants.

51. At all times relevant hereto, Defendants, including RAMIREZ, MERCEDES, FLORES, SMITH, BACA, BENITEZ, and JOHN OR JANE DOE 1-10, were involved in the decision to stop, seize, and arrest Plaintiffs without reasonable suspicion or probable cause, or failed to intervene when they observed others doing so in the absence of any reasonable suspicion or probable cause.

52. At all times relevant hereto, Defendants, including RAMIREZ, MERCEDES, FLORES, SMITH, BACA, BENITEZ, and JOHN OR JANE DOE 1-10, subjected Plaintiffs to excessive force, or failed to intervene when they observed others subjecting Plaintiffs to excessive force.

53. Defendants, including RAMIREZ, MERCEDES, FLORES, SMITH, BACA, BENITEZ, and JOHN OR JANE DOE 1-10, arrested and caused a criminal prosecution to be initiated against plaintiffs, because of their desires to use plaintiff's arrest and criminal prosecution to incur additional overtime compensation, benefits and career favor from the superior officers, to avoid

adverse consequences associated with failing to meet NYPD departmental arrest quotas, and also to conceal their egregious violations of proper police procedures and gross misconduct, including their fabrications of non-existent observations, evidence and information.

54. Defendants, including RAMIREZ, MERCEDES, FLORES, SMITH, BACA, BENITEZ, and JOHN OR JANE DOE I-10, arrested, applied excessive force and initiated a malicious prosecution against plaintiff in retaliation for plaintiffs' exertions of their constitutional right to freely express their opinion and inquiries, namely plaintiffs' displeasure with the manner in which defendants addressed them, their use of a personal cell phone, and their polite request for an explanation of their conduct.

55. As a result, Plaintiffs' mental health issues were aggravated and they developed a severe fear of police officers, which prevented them from venturing from their house for a period of time and has effectively permanently chilled their desire and ability to communicate with police officers.

56. Defendants, including RAMIREZ, MERCEDES, FLORES, SMITH, BACA, BENITEZ, and JOHN OR JANE DOE 1-10, unlawfully targeted and decided to stop and effect unlawful seizures of plaintiffs due to solely to their statuses as African Americans or Black individuals.

57. Defendants, including RAMIREZ, MERCEDES, FLORES, SMITH, BACA, BENITEZ, and JOHN OR JANE DOE 1-10, engaged in a conspiracy to falsely arrest and maliciously prosecute plaintiffs by personally conferring with each other, regarding the fabrication of the aforementioned non-existent evidence and observations, as well the manner and means by which said fabrications would be forwarded to the District Attorney's Office.

58. Plaintiffs assert that the Defendants, including RAMIREZ, MERCEDES, FLORES, SMITH, BACA, BENITEZ, and JOHN OR JANE DOE 1-10, who violated plaintiffs' civil rights,

are part of a larger pattern and practice of similar misconduct, which is so widespread, pervasive and consistent throughout the NYPD and the City of New York that the commission such constitutionally violative behavior has become tantamount to an official policy or custom within the NYPD and City of New York or, at the very least, conclusive evidence that the City and the NYPD have either tacitly approved of such egregious wrongdoings or that they have become deliberately indifferent to the civil rights of those who may come into contact with their police officers.

59. The individually named defendants herein, as well as other officers serving in the employ of the NYPD and City of New York, have blatantly, shamelessly, consistently and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by Constitution of the United States, in addition to the laws and Constitution of the State of New York, all without incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of the NYPD, the City of New York and their respective policymakers and supervisors.

60. *The New York Times*, as well as numerous other reputable journalistic enterprises, have reported on the widespread corruption within the NYPD and City of New York, particularly the incredibly disconcerting proclivity of many NYPD officers to lie about subject matters that are materially relevant to criminal prosecutions, including the complete fabrication of arrest evidence and witnesses. Also detailed, is the NYPD's obstinate refusal to effectuate corrective or preventive measures to combat the inevitable recurrence of such misdeeds, and perhaps most troubling, the NYPD's alarming tendency to, instead, reward and promote these officers, including those who were inculpated via incontrovertible evidence, such as video evidence.

61. The constitutionally repugnant behavior that persists within the ranks of the NYPD results from the NYPD's own policies, rules and procedures, namely the NYPD's incredibly flawed and

illegal use of arrest quotas. Despite its illegality, such policies remain systemin throughout the NYPD and its individual commands. The NYPD, however, was not content in compelling its officers to effect as many arrests as possible, regardless of the presence of any legal right to do, it promulgated various subsets of quotas, which are predicated on race, color or ethnicity. Additionally, the NYPD, its supervisors or policymakers would assign varying point values to arrests, which were, again, impermissibly based upon the arrestee's race, color or ethnicity. Unsurprisingly, officers would be better rewarded for minority arrests or summonses. This egregious conduct has reported by numerous respected media outlets and publications and has even formed the basis for federal lawsuits against the City and the NYPD, which were commenced by its own employee officers.

62. On June 17, 2020, the *New York Daily News* published an article, by Graham Rayman, entitled "Brooklyn Cop Claims he was Punished for not Meeting Arrest Quotas, Refusing to Take Responsibility for Controversial Arrest in which he Wasn't Involved," describing allegations from an NYPD Police Officer, Terrence Dickerson, that he was retaliated against by the NYPD for refusing to adhere to mandatory racially based arrest quotas and for his refusal to accept responsibility for a controversial and publicized arrest via the excessive force, despite the fact that he was not even at the scene.

63. Another article with a title that speaks for itself, also published by the *New York Daily News*, on December 5, 2019, and written by Graham Rayman, is entitled "Ex-Cop Details NYPD 'Collar Quotas'—Arrest Black and Hispanic Men, 'No Cuffs on Soft Targets' of Jews, Asians, Whites: Court Docs."

64. *The New York Times*, on December 6, 2019, published an article by Joseph Goldstein and Ashley Southall, entitled "I Got Tired of Hunting Black and Hispanic People," which revealed a

disturbing account from a different NYPD Police Officer, Anthony Diaz, describing a police force that measures the quality of police work by the quantity of minority arrests.

65. On March 18, 2018, *The New York Times* published an explosive article, entitled “Promotions, Not Punishments for Officers Accused of Lying,” written by Joseph Goldstein. Mr. Goldstein shines a light on the multitude of flaws within the CCRB and the NYPD, highlighting the fact that the substantiation of a claim against an officer will invariably rely on the presence of incontrovertible proof against the officer. Due to the rarity availability of this type of evidence, an alarmingly small percentage of officer misconduct claims are substantiated. The CCRB is further handicapped by a terribly designed system that requires evidence of a virtually indisputable nature to substantiate any claim against an officer. The article also details the NYPD’s persistent reluctance to investigate or discipline officers who lie and even posits that this reluctance is a significant cause of the lying pandemic within the NYPD. The article references various officers and detectives who were the subject of credible accusations relating to the officers’ intentionally false statements, with some allegations coming from federal and state judges.

66. On September 12, 2019, *The New York Times* published another article by Joseph Goldstein, entitled “Officers Said They Smelled Pot. The Judge Called Them Liars.” Unsurprisingly, this article dealt with the unusually high frequency of officers using the odor of marijuana to excuse a search that conspicuously does not result in the recovery of any marijuana. It should not require an article in *The New York Times* to call attention to such patently disingenuous tactics, but has become necessary for a variety of reasons, including the NYPD’s failure to correct such behavior, the willingness of prosecutors and judges to credit the lying officers and the increasing rate of occurrence.

67. On April 24, 2019, *The New York Times* published an article, entitled “Detective’s Lies Sent Three People to Prison, Prosecutors Charge,” by Sean Piccolo, detailing the lies of NYPD Second Grade Detective Joseph Franco and how those lies resulted in the imprisonment of at least three innocent people. The article described how Det. Franco lied about observing drug transactions on at least three separate occasions, lies that were only uncovered through contradictory video evidence. Det. Franco’s lies resulted in the innocent individuals each being sentenced to prison terms in excess of one-year.

68. Other articles include: (i) “Testilying’ by Police: A Stubborn Problem,” by Joseph Goldstein, *The New York Times*, March 18, 2018; (ii) “New York Detective Charged with Faking Lineup Results,” by Joseph Goldstein, *The New York Times*, February 17, 2018; (iii) “He Excelled as a Detective, Until Prosecutors Stopped Believing Him,” by Joseph Goldstein, *The New York Times*, October 17, 2017; (iv) “Review Board Notes Rise in New York Police Officers’ False Statement,” by J. David Goodman, *The New York Times*, May 14, 2015; (v) “In Brooklyn Gun Cases, Suspicion Turns to the Police,” by Stephanie Clifford, *The New York Times*, December 11, 2014; (vi) “Detective is Found Guilty of Planting Drugs,” by Tim Stelloh, *The New York Times*, November 1, 2011; and (vii) “The Drugs? They Came from the Police,” by Jim Dwyer, *The New York Times*, October 13, 2011.

69. The NYPD has a longstanding and ignominious record of failing to discipline its officers, or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York Times* published an article, entitled “2,495 Reports of Police Bias. Not One Was Deemed Valid by the N.Y.P.D.” This article reported that within the last five (5) years, almost 2,500 separate individuals have filed formal complaints with the NYPD alleging that an officer acted with bias toward them, with not a single one being substantiated by the NYPD. Such a finding is plainly

incredible and obviously the result of deliberately poor or nonexistent investigatory protocols. The report further impugned the NYPD's commitment to combat the prejudices and the biases exhibited by many of its officers.

70. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have imposed, tacitly approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in plaintiffs' arrests without probable cause.

71. Upon information and belief, the NYPD, the City of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion or the appropriate amount of force to be used.

72. Defendants' actions, pursuant to plaintiffs' underlying arrests, which occurred without even the semblance of probable cause, were so blatantly violative of plaintiffs' civil rights that the tacit approval of identical or similar acts by the policymakers or supervisors of the NYPD and the City of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with defendants, should be inferred, because such flagrant deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD and City of New York.

73. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD, City of New York and their respective policymakers, supervisors, police officers or employees, will become known after the completion of discovery, as such information is presently within the exclusive possession of defendants, the NYPD and City of New York.

74. Upon information and belief, the personnel files, records and disciplinary histories of the officer defendants will reveal a history of Constitutional violations indicative of defendant City's knowledge that the individual officer defendants were unfit for employment as NYPD officers, or for employment in general, and that the probability of the individually named defendants committing similar violations in the future was extremely high.

75. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City and the NYPD were fully aware of defendants' past constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for employment in general, and that the NYPD and City of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including RAMIREZ, MERCEDES, FLORES, SMITH, BACA, BENITEZ, and JOHN OR JANE DOE 1-10.

76. Upon information and belief, the individually named defendants have combined to be named as defendants in numerous lawsuits that have accused them of committing violations similar or identical to those alleged herein, all of which have resulted no disciplinary or corrective action of any kind.

77. Upon information and belief, the NYPD and City of New York and have failed, or outright refused, to correct the individually named defendants' predilections to engage in unconstitutional behavior or attempt to prevent the recurrence of such misconduct

78. The aforementioned acts of Defendants, including RAMIREZ, MERCEDES, FLORES, SMITH, BACA, BENITEZ, and JOHN OR JANE DOE 1-10, directly or proximately resulted in the deprivation or violation of plaintiffs' civil rights, as guaranteed and protected by the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, as well as the laws and Constitution of the State of New York.

79. As a direct or proximate result of said acts, plaintiffs were caused to suffer the loss of their liberty, irreparable reputational harm, loss of earnings and potential earnings, physical injury, as well as severe and permanent emotional distress, including fear, embarrassment, humiliation, traumatization, frustration, extreme inconvenience, and anxiety.

FIRST CAUSE OF ACTION

Protected Speech or Activity Retaliation Claim Under
New York State Law

80. The above paragraphs are hereby incorporated by reference as though fully set forth.

81. Plaintiffs engaged in speech and activities that were protected by article 1, section 8, of the constitution of the State of New York.

82. Defendants committed impermissible or unlawful actions against plaintiffs that were motivated or substantially caused by plaintiff's constitutionally protected speech or activities.

83. Defendants' retaliatory actions against plaintiffs resulted in deprivations to their liberty and the initiation of criminal charges against them in the absence of probable cause.

84. Defendants' retaliatory actions adversely affected plaintiffs' protected speech or activities by physically or procedurally preventing them from further pursuing said protected speech or activities or by chilling their desire to further participate or engage in such protected speech or activities.

85. Accordingly, plaintiffs' rights to engage in protected speech and activities, guaranteed and protected by article I, section 8, of the constitution of the State of New York, were violated by defendants.

86. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoings, under the doctrine of *respondeat superior*.

87. As a direct and proximate result of this unlawful conduct, plaintiffs sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTION

First Amendment Retaliation Claim Under
42 U.S.C. § 1983 *Against Individual Defendants*

88. The above paragraphs are hereby incorporated by reference as though fully set forth.

89. Plaintiffs engaged in speech and activities that were protected by the First Amendment to the Constitution of the United States.

90. Defendants committed impermissible or unlawful actions against plaintiffs that were motivated or substantially caused by plaintiffs' constitutionally protected speech or activities.

91. Defendants' retaliatory actions against plaintiffs resulted in deprivations to their liberty and the initiation of criminal charges against them in the absence of probable cause.

92. Defendants' retaliatory actions adversely affected plaintiffs' protected speech or activities by physically or procedurally preventing them from further pursuing said protected speech or activities, or by chilling their desires to further participate or engage in such protected speech or activities.

93. Accordingly, plaintiffs' rights to engage in protected speech and activities, as guaranteed and protected by the First Amendment to the Constitution of the United States, were violated by defendants.

94. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION
Unlawful Search & Seizure Under
New York State Law

95. The above paragraphs are hereby incorporated by reference as though fully set forth.

96. Defendants subjected plaintiffs and their property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

97. Plaintiffs were conscious and fully aware of the unreasonable searches and seizures to their persons and property.

98. Plaintiffs did not consent to the unreasonable searches and seizures to their persons or property.

99. The unreasonable searches and seizures to plaintiffs' persons and property were not otherwise privileged.

100. Accordingly, defendants violated plaintiffs' rights to be free from unreasonable searches and seizures, pursuant to Article I, Section 12, of the constitution of the State of New York and Article II, Section 8, of the New York Civil Rights Law.

101. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

102. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION
Unlawful Search & Seizure Under
42 U.S.C. § 1983 *Against Individual Defendants*

103. The above paragraphs are hereby incorporated by reference as though fully set forth.

104. Defendants subjected plaintiffs and their property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

105. Plaintiffs were conscious and fully aware of the unreasonable searches and seizures to their persons and property.

106. Plaintiffs did not consent to the unreasonable searches and seizures to their persons or property.

107. The unreasonable searches and seizures to plaintiffs' persons and property were not otherwise privileged.

108. Accordingly, defendants violated plaintiffs' rights to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the Constitution of the United States.

109. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION

False Arrest & False Imprisonment Under
New York State Law

110. The above paragraphs are hereby incorporated by reference as though fully set forth.

111. Defendants subjected Plaintiffs to false arrest, false imprisonment, and the deprivation of liberty without probable cause.

112. Plaintiffs were conscious of their confinement.

113. Plaintiffs did not consent to their confinement.

114. The arrests and false imprisonments of plaintiffs were not otherwise privileged.

115. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

116. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTION

False Arrest & False Imprisonment Under
42 U.S.C. § 1983 *Against Individual Defendants*

117. The above paragraphs are hereby incorporated by reference as though fully set forth.

118. The Defendants violated the Fourth and Fourteenth Amendments to the Constitution of the United States by wrongfully and illegally arresting, detaining and imprisoning Plaintiffs.

119. The wrongful, unjustifiable, and unlawful apprehensions, arrests, detentions, and imprisonments of Plaintiffs were carried out without a valid warrant, without Plaintiffs' consent, and without probable cause or reasonable suspicion.

120. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiffs.

121. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION

Assault & Battery Under
New York State Law

122. The above paragraphs are hereby incorporated by reference as though fully set forth.

123. Defendants caused plaintiffs fear for their physical well-being and safety and placed them in apprehension of immediate harmful or offensive touching.

124. Defendants engaged in and subjected plaintiffs to immediate harmful or offensive touching and battered them without their consent or other legal justification therefor.

125. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

126. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 *Against Individual Defendants*

127. The above paragraphs are hereby incorporated by reference as though fully set forth.

128. The Defendants violated Plaintiffs' rights, under the Fourth and Fourteenth Amendments to the Constitution of the United States, because they used unreasonable force without the consent of plaintiffs.

129. Defendants engaged in and subjected Plaintiffs to immediate harmful or offensive touching and battered them without their consent.

130. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

131. The above paragraphs are hereby incorporated by reference as though fully set forth.

132. Defendants initiated criminal prosecutions against Plaintiffs.

133. Defendants lacked probable cause to believe Plaintiffs were guilty or that the criminal prosecutions would succeed.

134. Defendants acted with malice, which may be inferred in the absence of probable cause.

135. The prosecutions were terminated in favor of plaintiffs, when all adverse charges were unconditionally and outright dismissed on the merits, due to the lack of probable cause to believe that plaintiffs had committed a crime or that the prosecutions would succeed.

136. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

137. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 *Against Individual Defendants*

138. The above paragraphs are hereby incorporated by reference as though fully set forth.

139. Defendants initiated criminal prosecutions against Plaintiffs.

140. Defendants lacked probable cause to believe Plaintiffs were guilty or that the criminal prosecutions would succeed.

141. Defendants acted with malice, which may be inferred in the absence of probable cause.

142. The prosecution was terminated in favor of plaintiffs, when all adverse charges were unconditionally dismissed on the merits, due to the lack of probable cause to believe that plaintiffs had committed any crimes or that the prosecutions would succeed.

143. Accordingly, Defendants violated Plaintiffs' rights under the Fourth and Fourteenth Amendments to the Constitution of the United States.

144. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

145. The above paragraphs are hereby incorporated by reference as though fully set forth.

146. Defendants arrested, detained and caused criminal prosecutions to be initiated against plaintiffs to compel the compliance or forbearance of some act.

147. Defendants had no excuse or justification to forcibly detain or initiate criminal prosecutions against Plaintiffs, especially in the absence of any cognizable probable cause.

148. Defendants intended to inflict substantial harm upon plaintiffs.

149. Defendants acted to achieve a collateral purpose, beyond or in addition to the criminal prosecutions initiated and thereafter maintained against Plaintiffs.

150. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

151. As a direct and proximate result of this unlawful conduct, plaintiffs sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 *Against Individual Defendants*

152. The above paragraphs are hereby incorporated by reference as though fully set forth.

153. Defendants arrested, detained and caused criminal prosecutions to be initiated against plaintiffs to compel the compliance or forbearance of some act.

154. Defendants had no excuse or justification to forcibly detain or initiate criminal prosecutions against plaintiffs, especially in the absence of any cognizable probable cause.

155. Defendants intended to inflict substantial harm upon plaintiffs.

156. Defendants acted to achieve a collateral purpose, beyond or in addition to the criminal prosecutions initiated and thereafter maintained against Plaintiffs.

157. Defendants' actions therefore resulted in deprivations to plaintiffs' rights, pursuant to the Fourth and Fourteenth Amendments to the Constitution of the United States.

158. As a direct and proximate result of this unlawful conduct, plaintiffs sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION

Denial of Right to Due Process Under
New York State Law

159. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

160. Defendants fabricated false evidence to be used against plaintiffs that was likely to influence a jury's decision.

161. Defendants forwarded said fabrications and false information to prosecutors.

162. Defendants' actions resulted in deprivations to the liberty and freedom of movement of plaintiffs after legal process had attached following their arraignments in criminal court.

163. Accordingly, defendants violated plaintiffs' rights to due process, pursuant to article I, sections 1, 2 & 6, of the constitution of the State of New York, and Article II, Section 12, of the New York Civil Rights Law.

164. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

165. As a direct and proximate result of this unlawful conduct, plaintiffs sustained the damages hereinbefore alleged.

FOURTEENTH CAUSE OF ACTION

Denial of Rights to Fair Trial & Due Process Under
42 U.S.C. § 1983 *Against Individual Defendants*

166. The above paragraphs are hereby incorporated by reference as though fully set forth.

167. Defendants engaged in the fabrication of evidence likely to influence a jury's decision.

168. Defendants forwarded said fabrications and false information to prosecutors.

169. Defendants' actions resulted in deprivations to the liberty and freedom of movement of plaintiffs after legal process had attached following their arraignments in criminal court.

170. Accordingly, defendants violated Plaintiffs' rights, pursuant to the Fourth, Fifth, Sixth and Fourteenth Amendments to Constitution of the United States.

171. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FIFTEENTH CAUSE OF ACTION

Violation of Victims of Violent Crime Protection Act Under
New York City Law

172. The above paragraphs are here incorporated by reference as though fully set forth herein.

173. Defendants' acts or series of acts constituted the commission of a misdemeanor or felony against plaintiffs, as defined in state or federal law, which presented a serious risk of physical injury to plaintiffs, regardless of whether said acts actually resulted in criminal charges, prosecutions or convictions.

174. Accordingly, defendants committed crimes of violence against plaintiffs and violated plaintiffs' rights, pursuant to section 10-403 of the Administrative Code of the City of New York.

175. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

176. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SIXTEENTH CAUSE OF ACTION

Biased Based Profiling Under
New York City Law

177. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

178. Defendants impermissibly relied upon the actual or perceived race, color, national origin, ancestry, citizenship status, gender, religion, religious practice, age, disability or sexual orientation of plaintiffs as the determinative factor in initiating law enforcement actions against Plaintiffs, rather than Plaintiffs' behavior or other information or circumstances that would link Plaintiffs to suspected unlawful activity.

179. Accordingly, defendants violated plaintiffs' rights, pursuant to section 14-151 of the Administrative Code of the City of New York.

180. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

181. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SEVENTEENTH CAUSE OF ACTION

Deprivation of Rights & Denial of Equal Protection of the Laws Under
New York State law

182. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

183. Plaintiffs, as African Americans or Black individuals, are members of a racial minority and protected class.

184. Defendants discriminated against Plaintiffs on the basis of race, color, national origin, ancestry, gender, religion, religious practice, age, disability or sexual orientation.

185. Defendants also engaged in the selective treatment of Plaintiffs, in comparison to others similarly situated.

186. Defendants' discriminatory treatment of Plaintiffs was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiffs for the exertion

of their Constitutional rights, or a malicious or bad faith intent to injure Plaintiffs.

187. Defendants applied facially neutral laws against Plaintiffs in a discriminatory manner.

188. Defendants, motivated by racial animus, applied facially neutral statutes with adverse effects against Plaintiffs.

189. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiffs.

190. Accordingly, defendants violated plaintiffs' rights, pursuant to article I, section 11, of the constitution of the State of New York, article VII, section 79-N, of the New York Civil Rights Law and section 296, paragraph 13, of the New York Executive Law.

191. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

192. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

EIGHTEENTH CAUSE OF ACTION

Deprivation of Rights & Denial of Equal Protection of the Laws Under
42 U.S.C. §§ 1981 & 1983 *Against Individual Defendants*

193. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

194. Plaintiffs, as African Americans or Black individuals, are members of a racial minority and protected class.

195. Defendants discriminated against Plaintiffs on the basis of race, color, ethnicity or national origin.

196. Defendants engaged in the selective treatment of Plaintiffs in comparison to others similarly situated.

197. Defendants' selective treatment of Plaintiffs was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiffs for the exertion of their Constitutional rights, or malicious or bad faith intent to injure Plaintiffs.

198. Defendants applied facially neutral laws against Plaintiffs in a discriminatory manner.

199. Defendants, motivated by racial animus, applied facially neutral penal statutes with adverse effects against Plaintiffs.

200. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiffs.

201. Accordingly, defendants violated plaintiffs' rights, under the Equal Protection Clause of the Fourteenth Amendment to the Constitution of the United States.

202. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

203. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

NINETEENTH CAUSE OF ACTION

Conspiracy to Interfere with Civil Rights & Failure to Prevent the Conspiracy Under
42 U.S.C. §§ 1983, 1985 & 1986 *Against Individual Defendants*

204. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

205. Defendants engaged in a conspiracy against Plaintiffs to deprive them of their rights to engage in protected speech or activities, to be free from unreasonable searches and seizures, to be afforded a fair trial, and to not be deprived of their liberty or property without Due Process of law, in addition to plaintiffs' Constitutionally guaranteed privileges and immunities under the Fifth and Fourteenth Amendments to the Constitution of the United States.

206. Defendants committed overt acts in furtherance of their conspiracy against Plaintiffs.

207. As a result, Plaintiffs sustained injuries to their persons, were deprived of their liberty, rights or privileges as citizens of the United States.

208. Defendants' conspiracy was motivated by a desire to deprive Plaintiffs of their civil rights or because of some racial or otherwise class-based, invidious or discriminatory animus.

209. The Defendants that did not engage or participate in the conspiracy to interfere with Plaintiffs' civil rights, had knowledge that acts in furtherance of the conspiracy were about to be committed or in the process of being committed, possessed the power to prevent or aid in the prevention of the conspiratorial objective, and neglected to do so.

210. Accordingly, defendants violated Plaintiffs' rights, pursuant to the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States.

211. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

212. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWENTIETH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

213. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

214. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

215. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

216. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWENTY-FIRST CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 *Against Individual Defendants*

217. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

218. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

219. Accordingly, the Defendants who failed to intervene violated the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States.

220. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWENTY-SECOND CAUSE OF ACTION

Negligent Hiring, Training, Retention & Supervision Under
New York State Law

221. The above paragraphs are hereby incorporated by reference as though fully set forth.

222. Defendant City owed a duty of care to Plaintiffs to adequately hire, train, retain and supervise its employee defendants.

223. Defendant City breached those duties of care.

224. Defendant City placed the individually named defendants herein in a position where they could inflict foreseeable harm.

225. Defendant City knew or should have known of the individual named defendants' propensities for violating the individual civil rights of those they interacted with prior to the injuries incurred by Plaintiffs.

226. Defendant City failed to take reasonable measures in hiring, training, retaining or supervising the individually named defendants, which would have prevented or mitigated the aforesaid injuries suffered by Plaintiffs.

227. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWENTY-THIRD CAUSE OF ACTION

Municipal “*Monell*” Liability Under
42 U.S.C. § 1983 *Against Defendant City*

228. The above paragraphs are hereby incorporated by reference as though fully set forth.

229. Defendant City maintained a policy or custom that caused Plaintiffs to be deprived of their civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of those who may interact with the individually named defendants to such Constitutionally repugnant behavior, such as plaintiffs.

230. Defendant City’s employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

231. Defendant City and its policymakers failed to provide adequate training or supervision to their subordinates to such an extent that is tantamount to their deliberate indifference toward the rights of those who may come into contact with the defendant City’s employee police officers, including the individually named police officers herein.

232. Defendant City’s employee police officers engaged in such egregious and flagrant violations of plaintiffs’ Constitutional rights that the need for enhanced training or supervision is obvious and equates to the exhibition of deliberate indifference by defendant City and its officials,

policymakers or supervisors toward the rights of individuals, who may come into contact with defendant City's employee police officers, including the individually named defendants herein.

233. Defendant City's repeated willful refusals or unexcused failures to install or apply corrective or preventive measures constitutes its tacit approval or deliberate indifference with respect to violations of the civil or Constitutional rights of those who may come into contact with NYPD officers, including the individually named defendants herein.

234. Defendant City's conduct resulted in violations of plaintiffs' civil rights, under the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States.

235. As a direct and proximate result of this unlawful conduct, plaintiffs sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiffs respectfully request judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) On the Thirteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- n) On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- o) On the Fifteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- p) On the Sixteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- q) On the Seventeenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- r) On the Eighteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- s) On the Nineteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- t) On the Twentieth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- u) On the Twenty-First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- v) On the Twenty-Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- w) On the Twenty-Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- x) Awarding Plaintiffs compensatory and punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
- y) Awarding Plaintiffs reasonable attorney's fees and costs, pursuant to 42 U.S.C. § 1988, the New York Civil Rights and Executive Laws, and all applicable sections of the Administrative Code of the City of New York;

z) Together with the costs and disbursements of this action with all interest then accrued.

JURY DEMAND

Plaintiff demands a trial by jury.

Dated: Bayside, New York
March 8, 2022

SIM & DEPAOLA, LLP

A handwritten signature in black ink, appearing to read 'Ataur Raquib', is written over a horizontal line.

By: Ataur Raquib, Esq.
Attorneys for Plaintiff
42-40 Bell Blvd., Ste 405
Bayside, NY 11361
T: (718) 281-0400
F: (718) 631-2700

ATTORNEY VERIFICATION

I, Ataur Raquib, an attorney admitted to practice in the courts of New York State, state that I am an associate with the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiffs, is because Plaintiffs reside outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
March 8, 2022



Ataur Raquib, Esq.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

MAHAMADOU SIDIBEH, MUHAMMED GUMANEH, AND USMAN HARUNA,

Plaintiffs,

-against-

CITY OF NEW YORK, KEVIN RAMIREZ, JOSE MERCEDES, JORGE FLORES, SCOTT
SMITH, DANIEL BACA, WILFREDO BENITEZ, AND JOHN OR JANE DOE 1-10,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SIM & DEPAOLA, LLP

Attorneys for Plaintiff(s)

42-40 Bell Boulevard

Suite 405

Bayside, New York 11361

Tel. (718) 281-0400

TO: CORPORATION COUNSEL OF THE CITY OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated:

Attorney(s) for